

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF SUTYAGIN AND GAVRIKOV v. RUSSIA

(Applications nos. 13518/10 and 32190/20
– see appended list)

JUDGMENT

STRASBOURG

15 December 2022

This judgment is final but it may be subject to editorial revision.



In the case of Sutyagin and Gavrikov v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar*,

Having deliberated in private on 24 November 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in two applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by Mr D.G. Bartenev, a lawyer practising in St Petersburg.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the ban on holding lesbian, gay, bisexual and transgender (LGBT) public assemblies imposed by the domestic authorities and of the discriminatory manner in which the latter treated their applications for holding these events. In application no. 13518/10 Mr Sutyagin also raised a complaint about the lack of domestic remedies against the alleged violation of his right to freedom of assembly.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLES 11 AND 14 OF THE CONVENTION

7. The applicants complained principally of the ban on holding LGBT assemblies and of the discriminatory manner in which the national authorities

had treated their applications for holding these events. They relied, expressly or in substance, on Articles 11 and 14 of the Convention, which read as follows:

Article 11

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

Article 14

"The enjoyment of the rights and freedoms set forth in [the] Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status."

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Bączkowski and Others v. Poland*, no. 1543/06, §§ 61-64, 3 May 2007). It also refers to its case-law concerning discrimination on the grounds of sexual orientation (see *Kozak v. Poland*, no. 13102/02, 2 March 2010).

9. In the leading case of *Alekseyev v. Russia,* nos. 4916/07 and 2 others, 21 October 2010, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the ban on holding LGBT public assemblies imposed by the domestic authorities did not correspond to a pressing social need and was thus not necessary in a democratic society. The Court also finds that the applicants suffered unjustified discrimination on the grounds of sexual orientation which was incompatible with the standards of the Convention.

11. These complaints are therefore admissible and disclose a breach of Article 11 and of Article 14 in conjunction with Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. In application no. 13518/10, Mr Sutyagin submitted a complaint under Article 13 of the Convention about the lack of effective remedies against the alleged violation of his right to freedom of peaceful assembly (see appended table). This complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor is it inadmissible on any other ground. Accordingly, it must be declared admissible. Having examined all the material before it, the Court concludes that it also discloses a violation of the Convention in the light of its findings in *Alekseyev and Others*, cited above, §§ 97-100, and *Lashmankin and Others v. Russia,* nos. 57818/09 and 14 others, §§ 342-61, 7 February 2017.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Having regard to the nature of the applicants' complaints, the Court considers that the finding of a violation, triggering the respondent State's obligation to take measures aimed at ensuring the respect of the right to freedom of assembly indicated in the judgment of *Alekseyev and Others v. Russia*, nos. 14988/09 and 50 others, §§ 27-29, 27 November 2018, constitutes sufficient just satisfaction (see, for a similar approach, *Alekseyev and Others v. Russia* [Committee], nos. 26624/15 and 76 others, § 18, 16 January 2020), *Zverev and Others v. Russia* ([Committee], nos. 26363/18 and 2 others, § 15, 7 July 2022, and *Taratunin and Others v. Russia* ([Committee], nos. 2051/18 and 4 others, § 14, 28 July 2022).

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the applications admissible;

3. *Holds* that these applications disclose a breach of Article 11 and of Article 14 in conjunction with Article 11 of the Convention concerning the ban on holding LGBT public assemblies and the discrimination of the applicants on the grounds of sexual orientation;

4. *Holds* that there has been a violation of Article 13 of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table) in application no. 13518/10;

5. *Holds* that the finding of a violation constitutes in itself sufficient just satisfaction.

Done in English, and notified in writing on 15 December 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Articles 11 and 14 of the Convention (discriminatory ban on holding LGBT public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Proposed theme of the public event Location Date	Grounds for refusal	Final domestic decision Court name Date	Other complaints under well-established case-law
1.	13518/10 10/02/2010	**Anton Aleksandrovich SUTYAGIN** 1979	Picketing to condemn the execution of death penalty in respect of homosexual persons in Iran In front of the Embassy of the Islamic Republic of Iran, Moscow 19/07/2009	Content-based restriction without reference to law banning promotion of homosexuality Decision by the Deputy Prefect of the Central Administrative District of Moscow of 10/07/2009	Judicial review under the Code of Civil Procedure Moscow City Court (appeal decision) 26/11/2009	Art. 13 - lack of any effective remedy in domestic law in respect of Article 11 complaint
2.	32190/20 19/06/2020	**Yuriy Alekseyevich GAVRIKOV** 1975	Gay Pride march St Petersburg 03/08/2019	Content-based restriction with reference to law banning promotion of homosexuality Decisions by the St Petersburg City Administration of 26/07/2019 and 30/07/2019 banning the march	Judicial review under the Code of Administrative Procedure Supreme Court of the Russian Federation (decision dismissing the cassation appeal) 31/01/2020	